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Case Number: 25TRCV04374 Hearing Date: August 21, 2026 Dept: B

Moving Parties: (1), (2) Defendant Apple

Inc.; (3) Defendant Fazepro, LLC

Responding

Party: Plaintiff Eddie Young Kim

(1)

Demurrer to SAC

(2)

Motion to Strike

(3)

Motion to Strike

The Court considered the moving, opposition, and reply papers.

RULING

See below.

BACKGROUND

On December 23, 2025, John Doe filed a complaint against Apple, Inc. and Fazepro, LLC for (1) negligence, (2) strict liability – design defect – consumer expectations test, (3) strict liability – design defect – risk benefit test, (4) violations of California's Constitutional Right to Privacy,

and (5) Bus. and Prof. Code §17200.

On May 13, 2026, plaintiff filed a FAC.

On June 5, 2026, plaintiff Eddie Young Kim filed a SAC.

LEGAL

AUTHORITY

Demurrer

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747. Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." *Gressley v. Williams* (1961) 193 Cal. App. 2d 636, 643-44.

Strike

"The

court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." CCP §436(b).

CCP

§431.10 states: "(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to

that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2)

An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An

‘immaterial allegation’ means ‘irrelevant matter’ as that term is used in Section 436.”

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

Punitive

damages

Civil

Code §3294 authorizes the recovery of punitive damages in non-contract cases where “the defendant has been guilty of oppression, fraud, or malice . . .

.”

To

state a claim for punitive damages under Civil Code §3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. *Smith v.*

Superior Court (1992) 10 Cal. App. 4th 1033, 1042. The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. *Id.* A motion to strike may lie where the facts alleged, if proven, would not support a finding that the defendant acted with malice, fraud or oppression. *Turman v. Turning Point of Central California* (2010) 191 Cal. App. 4th 53, 63.

The

Court in *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-95, found that “[s]omething more than the mere commission of a tort is always required

for punitive damages. There must be circumstances of aggravation or outrage, such as spite or 'malice,' or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton."

"'Malice'

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." Civil Code §3294(c)(1).

As the

Court noted in *College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 713, Section 3294 was amended in 1987 to require that, where malice is based on a defendant's conscious disregard of a plaintiff's rights, the conduct must be both despicable and willful. The Court in *College Hospital* held further that "despicable conduct refers to circumstances that are base, vile, or contemptible." *Id.* at 725 (citation omitted).

DISCUSSION

Demurrer

Defendant Apple Inc. demurs to each cause of action in the SAC on the grounds that they fail to state sufficient facts to constitute a cause of action.

The

SAC alleges that on the evening of September 13, 2024, while plaintiff was attending his son's volleyball practice in Manhattan Beach, an unidentified perpetrator broke into plaintiff's vehicle and stole confidential business records and \$1 million in cash that plaintiff had been transporting in connection with his business. This incident was not the product of opportunism or mere happenstance; it was, instead, the result of a carefully planned heist that appeared to be weeks, if not months, in the making and could not have been effectuated without the use of defendants' defective and negligently designed YIP Smart Tag, which includes the licensed technology and components needed to operate on Apple's Find My network. SAC, ¶1. While investigating the crime scene, the police discovered a YIP Smart Tag device concealed behind the rear tow hitch of

plaintiff's vehicle. The YIP Smart Tag had been on the vehicle for a considerable time, unbeknownst to plaintiff. Further investigation revealed that the version of the YIP Smart Tag placed on plaintiff's car was designed to operate on Apple's Find My network. Plaintiff, as well as his wife and their children, who frequently accompanied him in the vehicle, all used Apple iPhones at this time—yet none of them received any alert or other indication from Apple that a Find My-compatible device not registered or owned by any of them was traveling with them at any time leading up to the incident. If the YIP Smart Tag or Apple's Find My network had implemented such a basic safety feature, the incident—and the significant harm it caused—could have been prevented. *Id.*, ¶2.

The SAC further alleges that defendant FazePro negligently, recklessly, or, alternatively, intentionally designed the YIP Smart Tag without adequate safety features that would have prevented the harm plaintiff suffered. *Id.*, ¶4. The SAC alleges various studies and facts about stalking and the risks of tracking devices. *Id.*, ¶¶27-30.

First cause of action for negligence

The

Court finds that the allegations are insufficient. “To maintain an action for damages based on the wrongful act or neglect of another, a plaintiff must allege the wrongful act was a direct and proximate cause of the injury. ‘It is reasonably well settled . . . that the causation inquiry has two facets:

whether the defendant's conduct was the “cause in fact” of the injury; and, if so, whether as a matter of social policy the defendant should be held legally responsible for the injury.’” *Kumaraperu*

v. Felsted (2015) 237 Cal. App. 4th 60, 68 (citations omitted). “To determine causation in fact, California has adopted the substantial factor test An event will be considered a substantial factor in bringing about harm if it is ‘recognizable as having an appreciable effect in bringing it about.’”

Id. (citations omitted).

“An event that enables harm ultimately to occur need not necessarily be a substantial factor in bringing about the harm. ‘Care must be taken to avoid confusing two elements which are separate and distinct, namely, that which causes the injury, and that without which the injury would not have happened. For the former the defendant may be liable, but for the latter he may not; that is to say, in order to make a defendant liable his wrongful act must be the [immediate cause], and not merely the [necessary antecedent].’” *Id.*

The

SAC adequately alleges that the perpetrator(s) used the YIP Smart Tag and the Find My network to track plaintiff's location on the day of the burglary, without plaintiff having any knowledge that the tracking device was operating through his iPhone. The SAC alleges that the perpetrator(s) would not have located plaintiff's unattended vehicle to commit the burglary without electronically tracking his location. Apple's conduct is not too remotely connected with plaintiff's alleged injuries.

Moreover, plaintiff has adequately alleged that Apple owed a duty of reasonable care in the process of the design and manufacture of the YIP Smart Tag through its MFi certification process and its interaction with Apple's Find My network, which works through iPhones and other Apple products.

The

demurrer is OVERRULED.

Second cause of action for strict liability – design defect – consumer expectations test

"A 'design

defect' appears in products that, although properly manufactured, are dangerous because they lack a critical feature needed to ensure safe use." Webb v. Special Electric Co., Inc.

(2016) 63 Cal.4th 167, 180. "A product

design may be found defective if: (1)

'the product failed to perform as safely as an ordinary consumer would expect when used in an intended or reasonably foreseeable manner' (consumer expectations test)" Id.

(citation omitted). "Expert testimony as

to what consumers ordinarily 'expect' is generally improper." McCabe v. American Honda Motor Co. (2002) 100 Cal.App.4th 1111, 1120.

The

Court finds that the allegations are sufficient. Although expert testimony may be needed to explain the network architecture of the Find My network, an ordinary consumer is equipped to form expectations about the safety features of an Apple product (e.g., iPhone) that fails to show an alert when it is being used to broadcast the location of a nearby device (e.g. YIP Smart Tag). See id. at 1123-1124.

The

Court further finds that plaintiff has adequately alleged that Apple is subject to strict liability for the flaws in the design of its products and/or its role in the design, manufacture, and marketing of the Yip Smart Tag.

The
demurrer is OVERRULED.

Third cause of action for strict
liability – design defect – risk benefit test

“A
product design may be found defective if: . . . (2) the risk of danger inherent in the product’s design outweighs the design’s benefits (risk benefit test).” Webb, supra (citations omitted). Under the risk-benefit test, a design is
defective “if through hindsight the jury determines that the product’s design embodies excessive preventable danger, or, in other words, if the jury finds that the risk of danger inherent in the challenged design outweighs the benefits of such design. The
risk-benefit test requires the plaintiff to first demonstrate that the product’s design proximately caused his injury.” Kim
v. Toyota Motor Corp. (2018) 6 Cal.5th 21, 30 (citations, quotation marks, and alteration omitted). (Id. at p. 432.)

The
Court finds that the allegations are sufficient. See above.

The
demurrer is OVERRULED.

Fourth cause of action for violations
of California’s Constitutional Right to Privacy

“[A]
plaintiff alleging an invasion of privacy in violation of the state constitutional right to privacy must establish each of the following: (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy.” Mathews v. Becerra
(2019) 8 Cal. 5th 756, 769 (citing to Hills v. National Collegiate Athletic Assn. (1994) 7 Cal. 4th 1, 38-39).

The

Court finds that the allegations are insufficient as to a serious invasion attributable specifically to Apple's conduct.

There is no allegation that Apple placed the tracking device on plaintiff's car, nor that Apple broadcast plaintiff's identity/location to third parties or gathered and sold that information to third parties. Rather, an unknown perpetrator placed the tracking device and Apple's network was used to locate that tracking device. The fact that the tracking device relied on the proximity of Apple products is not a serious invasion of privacy.

The

demurrer is SUSTAINED.

Fifth cause of action for Bus. and

Prof. Code §17200

"The

UCL prohibits, and provides civil remedies for, 'unfair competition,' which includes 'any unlawful, unfair or fraudulent business act or practice.' (Bus. & Prof. Code, § 17200.) The UCL's 'unlawful' prong 'borrows violations of other laws ... and makes those unlawful practices actionable under the UCL. Virtually any law or regulation—federal or state, statutory or common law—can serve as [a] predicate for [an] ... 'unlawful' [prong] violation." *Randall v. Ditech Financial, LLC* (2018) 23 Cal.App.5th 804, 811 (citation, quotation marks, and alternation omitted).

The

Court finds that the allegations are sufficient because the UCL claim may be based on the first, second, or third cause of action.

The

demurrer is OVERRULED.

Motions to Strike

Defendants Apple and Fazepro each request that the Court strike all claims for punitive damages from the SAC, including paras. 44, 46, 51, 65 [under first cause of action], 73 [under second cause of action], 80 [under third cause of action], and 86 [under fourth cause of action] and prayer

for punitive damages.

The

Court notes that Apple improperly combined the motion to strike with the demurrer and paid only one motion fee.

The

motions are DENIED as to paragraphs 44, 46, 51, 65, 73, 80, and prayer for punitive damages. The Court finds that the allegations are sufficient as the SAC alleges documented knowledge of actual stalking and theft occurring through the Find My ecosystem, Apple's prior implementation of AirTag anti-stalking alerts, and a deliberate choice not to require or extend equivalent protection to certified third-party devices on the same network. The SAC also adequately alleges that FazePro acted with malice.

The

motion is GRANTED as to paragraph 86.

ORDER

The demurrers to the first, second, third, and fifth causes of action are OVERRULED.

The demurrer to the fourth cause of action is SUSTAINED. The Court requests argument on whether the defect can be cured via amendment.

The motions to strike are GRANTED as to paragraph 86 only. The Court requests argument on whether the defect can be cured via amendment.